

OFFICE OF ADVOCATE RAJESH KUMAR SHARMA

B.A. LL.B., LL.M. (Gold Medalist)

Enrollment No. AS/1247/2009 | Bar Council of Assam

Chamber: 2nd Floor, Lakhimi Complex, Fancy Bazar, Guwahati - 781001

Phone: +91-98540-XXXXX | Email: rksharma.advocate@gmail.com

Ref. No.: RKS/LN/2026/0847

Date: 28th June, 2026

To,

Mr. Arindam Kalita,

S/o Late Harendra Nath Kalita,

House No. 14, Nabin Nagar Path,

Chandmari, Guwahati - 781003,

Kamrup (Metro), Assam.

Subject: LEGAL NOTICE UNDER SECTION 138 OF THE NEGOTIABLE INSTRUMENTS ACT, 1881

Dear Sir,

Under the instructions and authority of my client, **M/s. Northeast Trading Corporation**, a partnership firm having its registered office at GS Road, Ulubari, Guwahati - 781007, Assam (hereinafter referred to as "my client"), I do hereby serve upon you the following Legal Notice of Demand under Section 138 of the Negotiable Instruments Act, 1881, and call upon you to comply with the same within the statutory period prescribed by law.

- That my client is engaged in the business of wholesale supply of electronic goods and accessories in Guwahati and surrounding areas. In the ordinary course of business, my client supplied electronic goods worth **Rs. 4,75,000/- (Rupees Four Lakhs Seventy-Five Thousand Only)** to you on various dates between March 2026 and May 2026, as per purchase orders placed by you and accepted by my client. The goods were duly delivered at your business premises at Fancy Bazar, Guwahati, and acknowledged by you.
- That in discharge of the aforesaid legally enforceable debt and liability arising out of the said supply of goods, you issued a cheque bearing **No. 456782** dated **15th May, 2026** for an amount of **Rs. 4,75,000/- (Rupees Four Lakhs Seventy-Five Thousand Only)** drawn on **State Bank of India, Chandmari Branch, Guwahati (IFSC: SBIN0001284)** in favour of my client.
- That my client, in the ordinary course, presented the aforesaid cheque for encashment through their bankers, namely **Punjab National Bank, GS Road Branch, Guwahati**, on **02nd June, 2026**. However, the said cheque was dishonoured and returned unpaid by your bank vide **Cheque Return Memo dated 04th June, 2026**, with the endorsement **"INSUFFICIENT FUNDS"**.
- That the dishonour of the said cheque issued by you in discharge of a legally enforceable debt constitutes a criminal offence punishable under **Section 138 of the Negotiable Instruments Act**,

1881, which provides for imprisonment for a term which may extend to **two years**, or with fine which may extend to **twice the amount of the cheque**, or with both.

5. That despite the dishonour of the said cheque, and despite repeated telephonic reminders and personal requests made by representatives of my client, you have failed, neglected, and refused to make the payment of the aforesaid sum of Rs. 4,75,000/- to my client.

6. That in view of the above facts and circumstances, and in compliance with the mandatory requirements of **Section 138(b) of the Negotiable Instruments Act, 1881**, I, on behalf of my client, do hereby demand that you make the payment of the entire cheque amount of **Rs. 4,75,000/- (Rupees Four Lakhs Seventy-Five Thousand Only)** to my client **within 15 (fifteen) days from the date of receipt of this notice**.

7. Please take notice that in the event of your failure to make the said payment within the stipulated period of 15 days from the receipt of this notice, my client shall be constrained to initiate criminal proceedings against you under **Section 138 read with Section 141 of the Negotiable Instruments Act, 1881**, before the competent Judicial Magistrate, at your sole risk, cost, and consequences. My client further reserves the right to claim **interest at the rate of 18% per annum** on the said amount from the date of dishonour till the date of actual realization, along with costs of litigation and advocate's fees.

8. A copy of the cheque return memo issued by State Bank of India, Chandmari Branch, is enclosed herewith for your ready reference.

You are advised to treat this notice with utmost seriousness and make the payment forthwith to avoid criminal prosecution.

Yours faithfully,

Sd/-

Advocate Rajesh Kumar Sharma

Counsel for M/s. Northeast Trading Corporation

Encl.:

1. Photocopy of Cheque No. 456782 dated 15.05.2026
2. Cheque Return Memo dated 04.06.2026 issued by SBI, Chandmari Branch
3. Copies of Invoices and Delivery Challans

Sent via Registered Post with Acknowledgment Due (RPAD)

Postal Receipt No.: EE 4521 7834 2 IN

Note: This notice is issued without prejudice to any other legal rights and remedies available to my client under the law, which are expressly reserved.